

TAYLOR, et al v RITCHIE

25CV47902

PLAINTIFFS' MOTION FOR SUMMARY JUDGMENT

This case involves a property dispute between Plaintiffs Kelly and Matthew Taylor ("Plaintiffs") and Lavina Richie ("Defendant.") Now before the Court is Plaintiff's Motion for Summary Judgment solely on the cause of action for trespass.

Defendant has not filed any opposition or opposing separate statement which, in the Court's discretion, may be a sufficient ground for granting the Plaintiffs' motion. (Code Civ. Proc. § 437c.)

I. BACKGROUND

Plaintiffs owned a double wide mobile home located at 11700 Wade Lane, space 31, in Valley Springs, California ("Space 31") and lease the space where it is located from Camanche South Shore Mobile Home Park ("Camanche.") (UMF 1.) Defendant resided at 11700 Wade Lane, space 32, in Valley Springs, California ("Space 32.") (UMF 2.) There is a retaining wall between Space 31 and Space 32. (*Ibid*, UMF 3.)

Plaintiffs trespassed Defendant twice: once on May 23, 2022, and a second time on June 2, 2022. (UMF 4.) Defendant flooded Plaintiffs' property seven (7) times, causing damage to Plaintiffs' property. (UMF 5.) Defendant and/or her family members threw eggs at Plaintiffs' home, causing damage. (UMF 6.) Defendant committed the trespass intentionally, negligently or recklessly. (UMF 7.) As a result, Plaintiffs have incurred damages in the amount of \$64,150.00. (UMF 8.)¹

¹ The Court does not consider any of Plaintiffs' facts which are not contained in the Separate Statement (*San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A.*, (2002) 102 Cal. App. 4th 308, 310 ["evidence not referenced in the separate statement of undisputed facts does not exist"].)

On May 15, 2026, the Court granted Plaintiffs' Motion to Deem Requests Admitted and deemed RFA Nos. 1-28 admitted.

On August 28, 2026, the Court granted Plaintiffs' Motion to Deem Requests Admitted and deemed RFA Nos. 29-37 admitted.

II. LEGAL STANDARD

Summary judgment is proper when there are no triable issues of material fact, and the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc., § 437c(c).)

A plaintiff may move for summary judgment when the plaintiff contends there is no defense to the cause of action. (Code Civ. Proc., § 437c, subd. (a).) A plaintiff meets the burden of showing there is no defense by proving each element of the cause of action. (Code Civ. Proc., § 437c, subd. (p)(1).) A plaintiff moving for summary judgment is not required to disprove any defense asserted by the defendant in addition to proving each element of the plaintiff's own cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853.) If the plaintiff meets its burden, then the burden shifts to the defendant to show the existence of a triable issue of material fact. (*Ibid.*) The moving party bears the burden of persuasion that there is no triable issue of material fact and that she is entitled to adjudication as a matter of law. (*Id.* at 850.)

Unless the moving party meets its burden, summary judgment cannot be ordered, even if the opposing party does not respond sufficiently or at all (*Johnson v. Superior Ct.*) (2006) 143 Cal. App. 4th 297, 305.)

III. DISCUSSION

The elements of trespass are: (1) the plaintiff's ownership or control of the property; (2) the defendant's intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant's conduct was a substantial factor in causing the harm. (*Ralphs Grocery Co. v. Victory Consultants, Inc.* (2017) 17 Cal.App.5th 245, 262.)

Plaintiffs' evidence establishes that they have ownership or control of Space 31 (UMF 1), that Defendant intentionally, recklessly, or negligently entered onto Space 31 (UMF 5-7), that Defendant did not have permission to do so (RFA 36), and that Plaintiffs were harmed and Defendant's conduct caused the harm (UMF 8.)

As there are no triable issues of material fact remaining on Plaintiffs' cause of action for trespass, summary judgment on this cause of action is warranted.

Accordingly, **summary judgment on the Plaintiffs' cause of action for trespass is GRANTED. Plaintiffs' damages on this cause of action are established at \$64,150.00. The remaining causes of action for private nuisance and preliminary/permanent injunctive relief are dismissed, all DOE defendants are dismissed, and the Mandatory Settlement Conference scheduled for September 21, 2026, at 8:30 a.m. in Department 2 is VACATED. The matter is scheduled for an OSC re Status of Judgment on October 7, 2026, at 1:30 p.m. in Department 4 (Four).**

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiffs to submit a formal Order and Judgment in conformity with this Ruling.

SANDERS v LUHRASSEBI, et al

25CV48021

PLAINTIFF'S MOTIONS TO COMPEL DISCOVERY RESPONSES

Lynne Sanders ("Plaintiff") filed her Complaint arising out of allegations of predatory lending against Loancutters, Inc. dba Evoque Lending ("Evoque"), Mehdi Luhrassebi ("Luhrassebi"), Frank Ortiz ("Ortiz"), Lee Kulick ("Kulick"), and Pasquale Chiechi and Antonia Chichi as Co-Trustees of the Chiechi Family Trust dated February 4, 1993 ("Lenders.") For ease of reference, the Court refers to Evoque, Luhrassebi, and Kulick as the "Evoque Defendants."

Now before the Court are Plaintiff's: 1) Motion to Compel Further Responses to Special Interrogatories, Set One (SROGs) and 2) Motion to Compel Further Responses to Requests for Production of Documents (RFP).

At the outset, the Court notes that there were multiple procedural problems with the motions and oppositions. Plaintiff should have filed a separate motion to compel for each defendant, as well as each discovery type. What was filed as two motions, was in reality six motions which not only is not compliant with rules for filing, but also unexpectedly increases the Court's workload. The opposition separate statements did not comply with California Rule of Court Rule 3.1345 because they did not contain the Plaintiff's stated arguments for compelling the further responses.

Counsel for both parties are admonished to review and adhere to this Court's local rules and the Code of Civil Procedure before future filings.

I. Factual and Procedural Background

The facts underlying this case have been recited by the Court in numerous previous rulings. In short, Plaintiff alleges that she was fraudulently manipulated into entering a commercial bridge loan ("Loan") instead of a residential loan which she eventually defaulted on.